patents



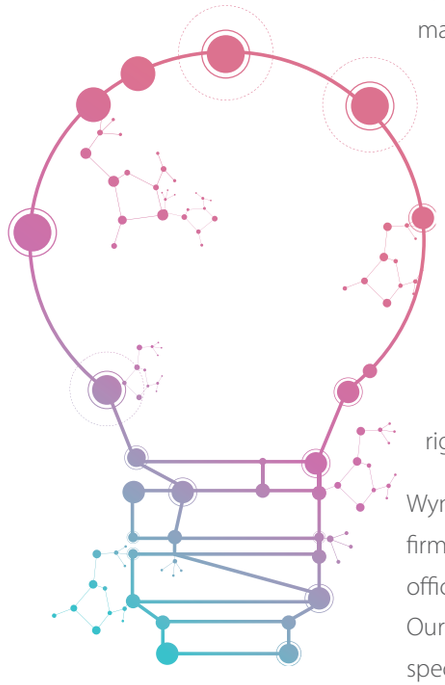
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To ensure that your IP assets are fully protected and exploited, you need the right partner.

Your IP is too important not to be done properly



Intellectual Property (IP) rights, such as patents, trade marks, designs and copyright are assets, which can be licensed and sold. Additionally, strong IP rights can be used to stop others from using your IP, thereby protecting your market position. IP rights may also be used to leverage grants and financial assistance. Quite simply, the value of a business can be transformed by obtaining the right IP assets. To ensure that your IP assets are fully protected and exploited, you need the right partner.

Wynne-Jones IP is one of the longest standing firms of patent and trade mark attorneys, with offices in London, Cardiff, Cheltenham and Telford. Our attorneys have a wealth of experience across a spectrum of technical and business sectors, which means that we can match you with an attorney who specialises in IP that is relevant to your field.

IP services tailored to address issues facing start-up businesses

It's not an overstatement to say that getting the right IP advice in the early days of a business venture can mean the difference between success and failure. If your core idea or product is not properly protected then it's unlikely that you'll be able to stop another company copying it. You could lose your market position, regardless of whether you were the first to create or commercialise.

Similar problems can arise with company or product names. Having a company name registered at Companies House and/or as a domain name won't necessarily enable you to stop a competitor from using the same, or very similar, brand name and take advantage of the reputation you're building up.

There's also the question of whether you infringe another company's IP rights. Even if you came up with your idea, product or brand name completely independently, this doesn't mean you can avoid being sued for infringement of many types of IP rights if you fall within their scope.

Our IP solutions

Wynne-Jones IP offer free, structured consultations for start-up ventures. Whether you're already up and running, or still at the drawing board stage, we will give full consideration to the forms of IP protection that are right for you and how you can use them to maximise your chances of commercial success.

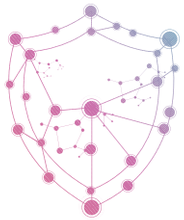
Topics covered can include how to protect your (current and future) concepts, products and brand names; investigating potential infringement risks, and licensing and other commercial negotiations involving IP.

We also discount some of our service charges for start-ups and have developed close links with a number of organizations, notably the Welsh Government, which can assist start-ups and new businesses with finance. We're also one of the few firms of IP attorneys who have opted into the UK IP Office funded scheme to provide free IP audits and related advice for businesses and start-ups.

What do we mean by a patent?

A patent is a right to the invention that entitles you to prevent, amongst other things, unauthorised manufacture, sale and import of the invention. If you have a granted patent you can secure a market niche for the invention and enforce your rights to stop others from making or commercialising your invention, or license the right to enable another party to validly exploit the invention.

If I obtain a granted patent in the UK do I get any protection overseas?



All IP rights, including patents, are territorial in nature, so if you obtain a granted patent in the UK this gives you exclusive rights in the UK only. If you wish to protect your invention in other territories, then you need to seek separate protection in these territories. Fortunately, if you are interested in protecting your rights in several countries in Europe there is a single system for processing the application, whereby at the end of the process you 'validate' the granted patent in your chosen countries enabling you to enforce your rights in those European countries. There is also an international patent application (also known as a PCT application) procedure which enables you to protect the invention in a number of territories worldwide. The PCT application is a holding application which defers the time for deciding upon those territories in which you may wish to pursue patent protection. Presently, the PCT application covers 151 countries and at the end of the holding period, namely the international phase, you can then decide to pursue national/regional patent applications in any of the countries covered by the PCT application.
The procedure relating to the national/regional patent applications will then continue in these selected countries according to the respective national/regional laws.

How long does it take to get a granted patent in the UK?

Usually the application process must be completed within 4 ½ years from filing. Normally prosecution of the application through to grant takes 2 ½ -4 years and is dependent upon any objections being raised at the Examination stage. Accelerated prosecution is available upon request in certain circumstances whereby the patent may be granted within a year. Accelerated prosecution is also available for inventions which have an environmentally friendly benefit.

How long do rights last in the UK?

The duration of a patent is 20 years from filing the patent application. Renewal fees must be paid for years 5 to 20 to keep the patent in force. A supplementary protection certificate can extend the protection of Medicinal products or plant protection by a further 5 years.

Can I register anything I want?

Needless to say there are restrictions as it would not be fair to obtain a monopoly in some circumstances. A patent is intended to protect the technical features of your invention and there are certain exemptions that exist, for example business methods, aesthetic creations and mathematic algorithms are all excluded from being patentable. A software patent may only be patentable if the software creates a real world technical effect, e.g. makes a production line work more efficiently. In this case it is usually the process carried out by the software that is protected.

I've been talking about my invention, can I still seek patent protection for it?

One of the criteria for patentability is that the invention is novel and therefore there can be no evidence that the invention is in the public domain prior to the filing date of your application. Unfortunately, this includes you talking to friends and family about the invention. Therefore, it is important that you do not discuss your invention, and in particular the technical information associated with your invention, in a social setting as you may jeopardise the ability to obtain a patent for the invention.

If you are required to discuss your invention with a potential manufacturer or distributor you must do so under a non-disclosure agreement. However it is always advised that, if possible, you ensure a patent application is filed with the UKIPO prior to any commercial negotiations relating to the product taking place.

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